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GNIOT Institute of Management Studies – PGDM (Batch 2021-23)

(TRIMESTER – III) END TERM EXAMINATION, APRIL - 2022

Industrial Relations and HR Legislations

[Time: 2 Hours 30 Minutes]

[Maximum Marks: 100]

INSTRUCTIONS:

- (i) **There are THREE sections in this question paper.**
- (ii) **Attempt questions from each section as per the directions.**
- (iii) **Make suitable assumptions wherever necessary.**

SECTION-A

(Short Answer Type Questions, do not exceed 100 words)

Q.1. Attempt all parts of the following:

(10×3=30)

- (a) What are the major reasons of industrial disputes in India?
- (b) Who is a minor as per factories act, 1948?
- (c) Who is a major as per factories act, 1948?
- (d) What do you mean by bipartite talk?
- (e) Write down role of collective bargaining in industrial dispute settlement.
- (f) Explain in short the approaches of IR.
- (g) Write a short note on “conciliation”.
- (h) List any two national level trade unions in India
- (i) What do you understand by the term adjudication?
- (j) Write down the minimum education qualification required for become ‘labour officer’.

SECTION-B

(Long Answer Type Questions)

Attempt all questions of the following:

(4×10=40)

Q.2. (a) What are the weaknesses of trade union? How these can be removed?

OR

(b) What is purpose of collective bargaining? Give the process of collective bargaining.

Q.3. (a) Explain the provisions relating to ‘Payment of gratuity’ under the Payment of Gratuity Act, 1972.

OR

(b) State and explain the various benefits assured to the insured employees and their dependents under the Employees’ State Insure Act, 1948.

Q.4. (a) Explain the main provisions of Bombay Shops and Establishment Act, 1948.

OR

(b) Write a detailed note on welfare provisions under the Factories Act, 1948.

Q.5. (a). Discuss the causes and consequences of industrial conflicts.

OR

(b) Write a note on Strike, Lockout, Layoff and Retrenchment.

SECTION-C

(2×15=30)

In a Bangalore based electrical company, it was a festive day for all the 700 plus employees. Festoons were strung all over, banners were put up; banana trunks and leaves adorned the factory gate, instead of the usual red flags; and loud speakers were blaring kannada film songs. It was the day the employees chose to celebrate Kannada Rajyotsava, annual feature of all Karnataka based organisations. The function was to start at 4 p.m. and everybody was eagerly waiting for the big event to take place. But the event, budgeted at Rs. 1,00,000/- did not take place. At round 2 p.m. there was a ghastly accident in the machine shop. - Murthy was caught in the vertical turret lathe and was wounded fatally. His end came in the ambulance on the way to hospital. Luckily for the management, the accident took place on a Saturday. The next day was a weekly holiday and this helped the tension to diffuse to a large extent. The funeral of the deceased took place on Sunday without any hitch. The management hoped that things would be normal on Monday morning. But the hope was belied. The workers refused to resume work. Again the management approached the union for help. Union leaders advised the workers to resume work in all departments except in the machine shop, and the suggestion was accepted by all. Two weeks went by, nobody entered the machine shop, though work in other places resumed. Union leaders came with a new idea to the management - to perform a pooja to ward off any evil that had fallen on the lathe. The management accepted the idea and pooja was performed in the machine shop for about five hours commencing early in the morning. This helped to some extent. The workers started operations on all other machines in the machine shop except on the fateful lathe. It took two full months and a lot of persuasions from the union leaders for the workers to switch on the lathe. The crisis was blown over, thanks to the responsible role played by the union leaders and their fellow workers. Neither the management nor the workers wish that such an incident should recur. Murthy was not covered under the ESI Act, Management had to pay compensation. Age and experience of the victim were taken into account to arrive at Rs. 1,87,000/- which was the amount to be payable to the wife of the deceased. To this was added Rs. 2,50,000/- at the intervention of the union leaders. In addition, the widow was paid a gratuity and a monthly pension of Rs. 4300/-. And nobody's wages were cut for the days not worked. Murthy's death witnessed an unusual behaviour on the part of the workers and their leaders, and magnanimous gesture from the management.

Q.6. Attempt all parts of the following:

6(a) Analyze the situation in the case.

6(b) In view of the above case, comment upon the need for labour laws.